

**BEFORE THE FEDERAL MARITIME COMMISSION
DOCKET NO. 2034(F)**

SEALINK DO BRASIL, Complainant

v.

HAPAG-LLOYD AG, Respondent

COMPLAINANT’S REPLY TO RESPONDENT’S RESPONSE

Honorable Erin M. Wirth
Chief Administrative Law Judge
Federal Maritime Commission

I. INTRODUCTION

Pursuant to 46 C.F.R. § 502.313, Sealink do Brasil (“Sealink”) respectfully submits this Reply to the Response filed by Hapag-Lloyd AG (“Hapag”) in the above-captioned proceeding. This matter has now been assigned to formal adjudication under Subpart T following Hapag’s refusal to proceed under Subpart S.

This Reply addresses both procedural and substantive arguments raised by Hapag, clarifies Sealink’s role and position, and incorporates documentary evidence, including the now-attached sworn English translation of all Portuguese-language correspondence. All pages, including exhibits, are Bates-numbered in accordance with FMC rules.

II. PROCEDURAL CLARIFICATIONS

Filing and Service Compliance

Hapag’s Response was submitted to the Office of the Secretary but not addressed to judges@fmc.gov as instructed in the Commission’s Notice of Assignment. While Sealink does not seek to have the Response stricken solely on this basis, it is noted for the record that the requirement applies equally to both parties.

Sworn Translation of Exhibits

In response to Hapag’s assertion regarding the lack of a verified translation, Sealink now provides a sworn and certified English translation, duly verified under oath, of all relevant correspondence, in compliance with 46 C.F.R. §§ 502.7 and 502.305(b). This sworn translation resolves any procedural objection and ensures that the Commission can fully evaluate the evidence without ambiguity.

III. FACTUAL BACKGROUND AND SEALINK’S ROLE

Sealink do Brasil is **not the contracting party** for the shipment at issue. **Sealink acts solely as the destination handling agent** for the NVOCC Asstra NY Inc. (“Asstra”), with no contractual control over the shipper’s obligations toward Hapag.

When demurrage charges accrued in Brazil, **Sealink made repeated, documented, and good faith attempts to collect payment from the passenger/underlying cargo owner**, but these efforts were unsuccessful. Despite our lack of contractual privity, we engaged in multiple communications in an effort to facilitate payment to Hapag.

Sealink **repeatedly requested** that Hapag engage directly with the shipper or NVOCC, but Hapag declined to do so.

Instead, Hapag placed full liability on Sealink as the named consignee and applied operational restrictions that jeopardized Sealink’s ability to manage unrelated shipments, ultimately **compelling Sealink to pay under commercial duress**.

IV. EVIDENCE FROM THE TRANSLATED CORRESPONDENCE

The sworn translation now submitted shows the following:

- **Page 3** – Sealink cites Hapag’s own Bill of Lading clause defining “Merchant” to include the shipper, consignee, and other parties, thereby making the shipper contractually responsible for charges.
- **Page 2** – Hapag denies the relevance of this clause.
- **Page 5** – Hapag clearly stated:

“Please note that in this case, SEALINK BRASIL is the legal entity responsible, and therefore the restriction is imposed on the consignee at the destination.”

- **Page 6** – Sealink explicitly requests that Hapag also contact the shipper and further requests that Hapag not block access to booking/release systems as a means of leverage.

These communications demonstrate that Hapag:

1. Was aware of the shipper’s contractual liability.
2. Refused to contact the shipper despite repeated requests.
3. Used operational restrictions against Sealink to enforce payment.

V. HAPAG’S BILL OF LADING TERMS (PUBLICLY AVAILABLE)

The relevant Hapag Bill of Lading terms are publicly available and confirm that “Merchant” liability extends to the shipper:

https://www.hapag-loyd.com/content/dam/website/downloads/pdf/7345_BillofLading_A4.pdf

This provision supports Sealink's position that the shipper—not the handling agent—should have been pursued for payment.

VI. LEGAL POSITION

Hapag's reliance on 46 C.F.R. § 541.4(a)(2) (permitting demurrage billing to a consignee) ignores the overarching statutory requirement under 46 U.S.C. § 41102(c) to adopt just and reasonable practices in the handling and delivery of property.

Here, the reasonable course of action would have been to:

- Engage directly with the shipper/NVOCC, who had contractual privity.
- Avoid operational restrictions on **a non-contracting handling agent with no capacity to compel payment** from the cargo owner.

By refusing to do so, Hapag acted unreasonably, causing Sealink to bear financial liability under duress. Such conduct disrupted the efficient handling of unrelated shipments and undermined supply chain fluidity.

VII. CONCLUSION

Sealink respectfully requests that the Commission:

1. Reject Hapag's procedural and substantive defenses.
 2. Find that Hapag's conduct violated 46 U.S.C. § 41102(c).
 3. Order reparations in the amount claimed, with interest, for charges improperly enforced against **a non-contracting handling agent who acted in good faith.**
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CERTIFICATE OF SERVICE

I hereby certify that on August 21, 2025, a true and correct copy of the foregoing *Complainant's Reply to Respondent's Response*, together with sworn translations and exhibits, was served via email upon:

- Office of the Secretary, Federal Maritime Commission – secretary@fmc.gov
- Chief Administrative Law Judge & Presiding Judge – judges@fmc.gov (courtesy copy)
- Counsel for Respondent Hapag-Lloyd AG:
 - Wayne Rohde – wrohde@cozen.com
 - Rachel Schwartz – rschwartz@cozen.com

Respectfully submitted,

Andre Moreira

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